JEREMIAH MUTSVANGA
versus
ZIMBABWE CATERING & HOTEL WORKERS UNION
and
FELISTAS NYAMUNDA (NO)
and
JAPHET SHUMBA (NO)

HIGH COURT OF ZIMBABWE
**WAMAMBO J**
HARARE; 24 November 2025

***Urgent chamber applications***

*C Chichetu,* for the applicant
No appearance for the 1st respondent
*T Mukawu,* for the 2nd and 3rd respondents

**WAMAMBO J**: This is an urgent chamber application to interdict the second and third respondents from amending the constitution of the first respondent.

The applicant is a subscribing member of the first respondent. The first respondent is an organization which represents the interests of hotel and catering industry workers in Zimbabwe duly constituted in terms of the Labour Act [*Chapter 28:01*]. The second and third respondents are the Interim President and Vice President of the first respondent. In terms of the first respondent's constitution, elections must be held every five years to elect new members of the national executive committee. The 2021 elections were nullified by a court order under case number HC201/22.

Subsequently, in terms of a court order under case number HCBC321/25, the second and third respondents were directed to facilitate the process of holding elections.

The applicant submitted that the second and third respondents, instead of holding elections to elect new members of the national executive committee for the first respondent, have resolved to amend the constitution of the first respondent in a bid to extend their terms in office.

The second and third respondents submitted that the matter was not urgent.

They disputed the applicant's submission that he became aware of the impending constitutional amendment process in July 2025. They submitted that the decision to amend the constitution is one that was taken by the first Respondent at its 5th annual congress of 13 December 2021, the council resolved inter alia that the union was to engage in a constitution-making process. They submitted that the applicant was in attendance as well.

On the day of the hearing, the applicant responded to the point in limine as follows. The applicant submitted that the second and third respondents erred by alleging that the need to act arose when the first respondent, on 13 December 2021, resolved inter alia to engage in a constitution-making process.

Applicant submitted that he learnt that the second and third respondents were amending the constitution on 25 June 2025. He said upon gaining such knowledge, he spoke to his legal practitioners, and a letter was written to the second and third respondent advising them to stop the amendment as they had no capacity to do so.

It was also the applicant's submission that after having sent the letter, on 25 July 2025, he learnt that the second and third respondents had continued to amend the constitution. The applicant submitted that because of the foregoing background, the need to act arose on 25 July 2025.

Applicant further averred that the first and second respondents' terms of office ended in 2021, and they were acting ultra vires. He said the only business the second and third respondents were left to do regarding the first respondent was to hold elections to elect new members of the first respondent's national executive committee.

The court finds that the matter is urgent for the following reasons. The applicant's basis for filing the present application is that the second and third respondents were amending the constitution without the necessary capacity to do so. The applicant stated he became aware of the respondents' actions on July 25, 2025. The applicant explained that on 25 June 2025, he learnt that the second and third respondents were amending the first respondent's constitution. He said upon learning of this, he sent out a letter through his legal practitioners to the respondents expressing that they had no capacity to amend the constitution, and they should stop. He said, on 25 July 2025, he learnt that the second and third respondents had ignored the letter and were still

proceeding with amending the first respondent's constitution. The present application was filed on 31 July 2025. The time it took for the applicant to file the present application after learning of the amendments by the second and third respondent shows that the applicant acted urgently. Therefore, the court dismisses the respondents' point in limine and concludes that the matter is urgent.

The point *in limine* raised by the respondents was that the order by the applicant is incompetent. The point in limine itself is twofold. Firstly, the respondents stated that the application was filed prematurely for the reason that the final order sought by the applicant is for the second and third respondents to comply with the order of the court in HCBC321/25, which directed them to hold elections for the appointment of the president, vice president, and trustees of the first respondent.

They submitted that the order under HCBC 321/25 directed the Respondents to hold elections within a specified period of time. They said that the applicant did not aver that the time line stipulated had elapsed. Secondly, they submitted that the interim relief was incompetent, for the reason that paragraph b sought to bar the second and third Respondents from amending the constitution of the first Respondent, indefinitely.

The court order under HCBC321/25 shows that the second and third respondents were directed to hold elections within 8 months from the granting of the order. The 8 months have not elapsed, and the order itself is still in extant.

Rule 60 (9) of the High Court Rules 2021 [*Chapter 7:06*] provides as follows:

> "Where in an application for a provisional order the judge is satisfied that the papers establish a prima facie case he or she shall grant a provisional order either in terms of the draft filed or as varied".

The rule allows the court to amend a draft order mero motu as was elucidated by the court in *Matsikidze* v *Zeplin Resources (Pvt) Ltd & 2 ors HH 558-23* where the court referred to *Chiswa* v *Maxess Marketing (Pvt) Ltd & Ors* HH 116-20 in which it was said:

> "My understanding is that the final wording of any court order (whether final or provisional) is the prerogative of the court as long as the order resolves the dispute(s) before the court. The draft provisional order submitted by the applicant with the application remains a proposal"

The court finds that this is a scenario that doesn't fall under the import of the rule for the following reason.

In light of the time stipulated under HCBC321/25, directing the second and third respondents to hold elections for the appointment of the president, vice president, and trustees of the first respondent, not having yet elapsed, the court finds that the final order would have to be excised as it cannot be varied or altered because it is incompetent. The final order having been excised would leave the draft order incomplete for want of the final order. In terms of rule 60 (11)(b) "a provisional order shall be accompanied by terms of final order ".

In the Supreme Court case of *Yunus Ahmed* v *Docking Station Safaris (Private) Limited t/a CC Sales SC70-18* the court said:

> "This draft order is incompetent in various ways. Apart from the several typographical errors, paragraph 1 does not state the Rule that the applicant failed to comply with, which the court should condone. Secondly, having established that this is an application for condonation and reinstatement of an appeal, paragraph 2 does not pray for the re-instatement of an appeal. Lastly, the applicant, in paragraph 3, prays that the Notice of Appeal be served on the Registrar of the Labour Court when it is common cause that he seeks to appeal against a decision of the High Court.
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> The sum effect of these errors render the draft order meaningless and inevitably fatally defective.
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> Such tardiness is least expected in court process that is drafted by a legal practitioner. Legal practitioners must be meticulous in drafting pleadings and process. Shoddily drawn process confuse the court and the other party. The need to be meticulous is most important when drafting the relief sought. If the relief sought is imprecise and defective, the court cannot grant it."

Because of the foregone conclusion that the provisional order is fatally defective because the final order is incompetent, the court accordingly makes the following order

1. The matter be and is hereby struck off from the roll, with the applicant to bear the second and third respondents' costs.

**WAMAMBO J**…….

*Muza & Nyapadi Legal Practitioners*, the applicant's legal practitioners
*Ndlovu & Dube Legal Practice*, the respondents' legal practitioners